5

Inquest

Meaning & Importance.

Inquest means inquiry into a death the cause of which is unknown. The term has its origin in the Coroner's enquiry under the English Law called Inquisition.

Type of Inquests :

1. Police inquest.
2. Magistrate inquest.
3. Judicial Magistrate inquest
4. Coroner's inquest (obsolete one).
    - The Coroner's Act came into existence in the year 1871 for Metropolitan Cities of Kolkatta, Mumbai and Chennai and is now nowhere in the country.
    - The power to conduct inquest u/s 174 CrPC meant for ascertaining apparent cause of death of a person when the death may be suicidal, homicidal or accidental but Corpus Delicti shall be there to hold inquest. Hence in the case of natural death of a person inquest shall not be held.
    - The inquest report is an important document in ascertaining the cause of death and the circumstances under which it took place.

Provisions relating to inquest are:-

- Section 174-176 of the CrPC deal with the inquest and procedures.
- Police Standing Orders 583 to 585 deal with the inquest and its procedure.
- Police Standing Orders 150 and 151 deal with the inquest by the Executive Magistrate in case of death by Police firing.
- Rule 21 of Tamil Nadu Criminal rules of Practice

Purpose of inquest is

1. To know the apparent cause of death.
2. To know the time since death.
3. To know the manner of death, whether homicidal, suicidal, accidental or natural.
4. To mark the injuries.
5. To collect the trace evidence from the corpse and
6. To establish the identity of the unknown body.

Who is empowered to conduct inquest.

- Executive Magistrate is empowered to hold inquest as per Section 174 (4) CrPC.
- Judicial Magistrate is empowered to hold inquest when death occurred in Police Custody as per Section 176 (1-A) of CrPC.
- Inquest can be held by an officer in-charge of PS or some other Police Officer specially empowered in this behalf as per section 174 CrPC and PSO 583 and Rule 21 of Criminal Rules of practice.
- Though the Out Post PS Head Constables are not empowered to register a FIR and investigate it when a cognizable offence is reported he is empowered to conduct investigation u/s 174 CrPC as per PSO 583 and rule 21 of Criminal Rules of Practice.
- Even VAO is empowered to conduct inquest as per PSO 583 and rule 21 of Criminal Rules of Practice.

Legal sanctity and requirements of inquest as per Section 174 CrPC.

- As per Section 174 (4) CrPC the following Magistrates are empowered to hold inquest namely, any District Magistrate or Sub-divisional Magistrate and any other Executive Magistrate specially empowered

in this behalf by the State Government or the District Magistrate.

- As per Section 174 (1) CrPC when the officer in-charge of the PS or some other Police Officer specially empowered by the State Government in that behalf receives information that a person
  a) Has committed suicide or
  b) Has been killed by another or by an animal or machinery or by an accident or
  c) Has died under circumstances where there is a reasonable suspicion that some other person has committed an offence.

He shall immediately give intimation thereof to the nearest Executive Magistrate empowered to hold inquest unless or otherwise directed by any rule prescribed by State Government or by any general or special order of the District or Sub-Divisional Magistrate shall proceed to the place where the body of such deceased person is and there in the presence of two or more respectable inhabitants of the neighborhood shall make an investigation and draw up a report of the apparent cause of death describing such wounds fractures bruises and other marks of injury as may be found on the body and stating in what manner or by what weapon or instrument such marks appear to have been inflicted. Such reports shall be signed by such Police Officer and other persons or by so many of them as concur therein and shall be forthwith forwarded to the District Magistrate or the Sub-Divisional Magistrate as per Section 175 (2) CrPC. From the provision of 174 (4) CrPC it is very clear that the power of conducting inquest is vested with the Executive Magistrate only. In the absence of the Executive Magistrate Police are empowered to conduct inquests.

- As per section 174(1) the officer in-charge of PS who is investigating and conducting inquest in a death case, which may be homicidal, suicidal or accidental death, shall immediately give information thereof to the nearest Executive Magistrate empowered to hold inquest.
- In practice it is not truthfully followed but after the investigation is over the IO usually send a report along with the FIR and inquest report for the information to the concerned jurisdictional Executive Magistrate.

Evidentiary value of inquest report.

1) The basic purpose of preparing an inquest report u/s 174 CrPC is to investigate into and draw up a report of the apparent causes of death.
2) It describes all such wounds as may be found on the body of the deceased and states in what manner and by what weapon, such wounds appear to have been inflicted.
3) It is neither necessary nor obligatory on the part of the IO to investigate into or ascertain who are the persons responsible for the death in inquest report.
4) The object of Section 174 CrPC is nearly to ascertain
   a) Whether a person died under suspicious circumstances or
   b) Met with an unnatural death and if so,
   c) What was its apparent cause
5) The question regarding
   a) How the deceased was assaulted or
   b) Who assaulted him or
   c) Under what circumstances he was assaulted is not in the ambit and scope of Inquest.
6) Inquest report is not a statement of any person wherein all the names of the accused must be mentioned.
7) Absence of the name of the accused or witness in the inquest does not make the inquest invalid.
8) Omissions in inquest report are not sufficient to put the prosecution out of Court.
9) It is not necessary to enter all the details of the overt act in the inquest report.
10) Evidence of eye witnesses cannot be discarded if their names do not figure in the inquest report prepared at the earliest point of time.
11) Inquest report is not substantive evidence. However, a verbatim report of the statements of witnesses examined at the inquest may often be of great use to the Court in testing the value of evidences subsequently

given by the witnesses and for corroboration of report of postmortem examination, it is necessary that in such cases, observations external findings of the corpus should be fully recorded.

12) It can be used for corroboration u/s 157 IEA or contradicting the witnesses of inquest u/s 145 or for refreshing memory u/s 159 of IEA.

13) Discrepancy, overwriting omission or contradiction in inquest report entertained by IO has given an opportunity to explain when he is examined as a witness in the Court.

14) Sec.175 CrPC does not prescribe that any of the Panchayatars should be examined as witnesses in inquest.

15) In an inquest all the witnesses need not be examined. Only the witnesses where evidence is necessary to establish it need to be examined.

16) The statement of witnesses recorded by Police at inquest fall within the purview of Section 162 CrPC.

17) The Statements should be recorded separately but they should not be embodied in the same inquest report.

PSO 585 Investigation by Out-Post Head Constable.

- Head Constable incharge of out posts have been empowered to hold investigation u/s 174(1) Criminal Procedure Code.
- It is not however the intention of this order to absolve the Station House Officer from any responsibility.
- When however the Sub-Inspector cannot arrive in time the investigation should be conducted by the VAO who will whenever possible await the arrival of subordinate Police Officer before commencing it.
- When in exceptional case it is impossible to secure the attendance of the VAO the investigation may be conducted by the HC in-charge of the Out Post and in such cases the investigation will be checked by the Sub-Inspectors wherever practicable.

Rule 21 of Tamil Nadu Criminal Rules of Practice.

- Head Constable in-charge of Police Out-Posts is empowered to hold investigations u/s 174(1) of the Code.
- Such investigation should however whenever possible be held by the Sub-Inspector and in his absence ordinarily by the VAO who is empowered to do so u/s 174 of the code. And HC in charge of Out Post should conduct these investigations in the absence of the Sub-Inspector only in cases where the VAO is absent or where serious delay would occur in obtaining his services.

Note. As per PSO 585 and rule 21 of TN Criminal Rules of practice in the absence of Sub-Inspector VAO is empowered to conduct inquest though the head Constable is present. In the absence of VAO Head Constable is allowed to conduct investigation.

The IO shall send the body for PM examination in the following circumstances.

1) When there is any doubt regarding the cause of death.
2) When it involves suicide by woman within seven years of her marriage or
3) Where a woman dies within seven years of her marriage in any circumstances raising a reasonable suspicion that some other has committed an offence relating to the women.
4) When a woman dies within seven years of her marriage and any relative of the woman has made a request in that behalf or
5) The Police Officer for any other reason considers it expedient to do so.

In other circumstances Police Officer has got discretion not to send the body for post-mortem examination only in case where there can be no doubt about the cause of death. This discretion is to be exercised prudently and honestly.

PM examination is not required if there is no doubt about the cause of death.

Sec.175 CrPC: Power to summon persons.

1. A Police Officer proceeding u/s 174 may, by order in writing summon two or more persons as aforesaid for the purpose of the said investigation and any other person who appears to be acquainted with the facts of the case and every person so summoned shall be bound to attend and to answer truly all questions other than the questions, the answers to which would have a tendency to expose him to a criminal charge or to a penalty or forfeiture.
2. If the facts do not disclose a cognizable offence to which Section 170 applies, such person shall not be required by the Police Officer to attend a Magistrate's Court.
    - Section 175 (1) stipulates that it is sufficient for two or more witnesses to attend the inquest proceeding. But in practice we are insisting on at least five independent panchayathars of the locality to participate in the inquest proceedings.
    - The panchayath witnesses shall not be from close or blood relatives of the deceased and it is preferable if they are independent and belonging to different communities.

Sec.176 (1-A) CrPC: Inquiry by Judicial Magistrate in the following circumstances.

1. Death in Police Custody or any other custody authorized by the Court.
2. Death in Police lock-up.
3. Person disappearing from the Police custody.
4. Rape is alleged to have been committed on any woman in Police Custody.
5. Death in judicial custody.
6. Death in Police firing.
7. All Police Encounter deaths.

Sec.176 CrPC: Inquest by Executive Magistrate in the following circumstance.

1. Exhumation.
2. Second time inquest.
3. Unnatural death of a woman within 7 years of her marriage in her in-laws house.
4. Death in Reformatories/Borstal schools.
    - If the death occurred in Police Custody, it must be informed to Judicial Magistrate to hold the inquiry as per Section 176 (1-A) of CrPC.
    - According to Sec.176 in the case of death in police custody or person disappearing from the Police Custody or rape is alleged to have been committed on any woman in Police Custody, inquiry by a Judicial Magistrate is obligatory.
    - Death in Police firing or a woman committing suicide within seven years of her marriage, inquest by a Executive Magistrate is obligatory in other cases it is optional. Such inquests may be held by District Magistrate or Sub Divisional Magistrate or other Executive Magistrate specially empowered in this behalf.
    - When the case falls u/s 174 (3) (i) or (ii) there is doubt regarding the cause of death or suicide by a woman within seven years of her marriage the nearest Executive Magistrate shall hold an enquiry into the cause of death either instead of or in addition to the investigation held by the Police Officer.
    - The Executive Magistrate holding such an enquiry shall record the evidence taken by him in connection therewith.
    - When there is dispute on the inquest conducted by the Police, the Executive Magistrate may conduct the inquest second time if warranted.
    - The Executive Magistrate empowered to hold inquest can also order the body to be disinterred for ascertaining the cause of death.
    - U/s 176 (3) CrPC Executive Magistrate can exhume a body for such purpose irrespective of the persons Personal Law Governing the dead, the Supreme court.
    - The Magistrate either Judicial or Executive holding inquest shall inform the relatives of the deceased and allow them to be present at the time of

enquiry. He shall also record the evidences taken by him in any manner according to the circumstances of the case as per section 176 (2) CrPC.

- The inquiry by a Magistrate u/s 174 is distinct from the proceedings taken on a complaint.
- Sec.174 CrPC is inapplicable where the dead body is not available.

Holding inquest.

Inquest report prepared u/s 174 should contain the details found on the body and at the scene of offence.

1) Inquest shall be conducted only in the place where the dead body is found. If the body is found in the well or nearby railway track or if it is kept in the mortuary, the IO shall go to such place along with the panchyatars witnesses and conduct inquest.

(2) In case of dismembered body thrown at different places, hold separate inquest for each and one more inquest after bringing all the limbs together if they are suspected to be of the same person. Always take photographs and if necessary videograph all the places. Assistance of the Medical Officer if possible may be obtained wherever possible.

(3) Suppose if more than one dead body is found in the scene, IO shall conduct individual and separate inquest for each body. But the panchayath witness need not be different in each inquest.

(4) In all cases of homicide the IO shall forward the inquest report along with statements and other relevant documents to the jurisdictional Executive Magistrate.

(5) In case of natural disasters like flood, earthquake, explosion, fire accident and major transportation accidents there may be many dead bodies and in a particular Police jurisdiction single IO may not be able to conduct all the inquests individually. In that situation more number of officers can be deputed for conducting inquest of all bodies individually.

(6) In case of natural calamities and disasters there may be mass deaths inquest shall be conducted in respect of each of the dead bodies. But post-mortem need not be conducted over all the dead bodies. On the direction of District Magistrate a sample post-mortem may be done on one or two bodies and the same finding may be made applicable to all other bodies in such deaths.

Don'ts

1. Don't feel shy to uncover the body thoroughly.
2. Don't fail to examine the private parts.
3. Don't try to use medical terms in drawing up the report. Remember there are witnesses also to the inquest and they are laymen generally. Besides, your terminology may be wrong and may create unnecessary complications.
4. Don't fail to take notes of the manner in which the deceased has worn cloths. It helps to distinguish between suicide and homicide, particularly where women are concerned.
5. Don't change position of the body without taking proper notes, photographs etc.,
6. Don't fail to mention names of persons identifying the corpse.
7. The corpse need not be sent with dress and other wearing apparels to postmortem examination. All the cloth and ornaments found on the corpse may be removed and the corpse is to be wrapped with cover and then sent to mortuary for postmortem examination.
8. Don't put charcoal on the dead body to deter decomposition. When such a thing is necessary, always wrap the body in cloth and then put charcoal alongside.
9. Don't fail to send the history of the case along with requisition for conducting autopsy. If not sent, medical officer may refuse to conduct PM examination.

Establishing identity of the deceased when he is unknown.

- Victim's belongings to be searched for articles such as diaries, cell phone, visiting cards, ATM, credit cards, pocket books, letters, counterfoils of cheques etc.,
- Photographs of full face and profile to be taken for circulation to establish identity.

- Fingerprints to be taken and sent to FPB for comparison and verification.
- DNA fingerprinting may be done with the deceased blood/muscles and preserved for future for comparison and identification with alleged parents.
- Clothing to be examined for laundry or dhobi marks and tailors label.
- Any malformation, deformities of the body is to be recorded.
- Conformation of teeth-dentist's record may be helpful.
- Publication by bills, tom-tom through VAO, radio, cable TVs, press and news channels may be done.
- Publication of the details in the Weekly Crime and Occurrence Sheet and details with photograph in the TNCIG may also be done.
- From the bones and skeleton of the deceased, sex and age may be determined by expert. Any fracture or malformation of bones, plating and nailing of bones is likely to be of helpful for identification of the deceased.
- If the skull is available, it can be made identifiable by superimposition with the life size photograph of the deceased.

During and after inquest.

1. In the autopsy room the body should be identified to the Medical Officer by the Police Constable who accompanied the dead body.
2. Allowing the IO at the time of post-mortem examination is the sole discretion of the Medical Officer who is going to conduct the post-mortem examination.
3. If the Medical Officer does not allow the IO he can request the competent Magistrate and may get an order to attend the post-mortem examination.
4. After post-mortem examination is over the body may be handed over to the relatives of the deceased in order to cremate it according to their customary rituals.
5. If it is unidentified body, in order to identify it IO can request the hospital authority to keep the body in freezer for few more days for investigation purpose to identify it.
6. Even after investigation if the body is not identified and IO decides it is no use of keeping the body, he may send the body to the Corporation or Municipal Authority after preserving the necessary articles and exhibits for future identification with requisition to bury it in the burial ground.

Common mistake made by IOs while preparing inquest Report.

1. In describing foetus wrong information are at times given about the sex of the subject writing male instead of female and vice versa.
2. In describing an adult unidentified male body description of the foreskin in the genital organ whether circumcised or not is often not given.
3. Description of the injuries and its position, direction given in a slipshod manner. Conditions of the clothes whether they bear any marks or cut or puncture or struggle, etc not always noted.
4. In case of hanging marks of saliva dribbling from an angle of the mouth are sometimes omitted. Similarly, the position of the tongue whether protruded or found bitten by the teeth is omitted. Presence or absence of semen, faecal matter is also not always noted. In cases of female's bodies the discharge found is not of semen but of mucus from the vagina mistakenly noted as semen.
5. When sending more than one body after inquest for autopsy examination, proper identifying marks are not affixed on the bodies. To avoid confusion proper identifying neck labels should be affixed on the bodies.
6. In the case of unidentified bodies, identifying marks like scars, moles, and tattoo marks, etc, are not always given.
7. In the Inquest report a brief history of the case about facts and circumstances ascertained from local enquiry is not always given. The report should include the circumstances under which the death took place, for assistance of the Autopsy Surgeon. It will help him to determine real cause of death in autopsy.

8. In case of death due to injury it should be noted whether a weapon was found at the scene and if so the position and direction and distance of the weapon from the dead body, whether firmly grasped in hand in cadaveric spasm or not.
9. In case of suspected poisoning mention must be made whether there are any peculiar stains coming down from angles of the mouth or even the palm or back of the hand indicating attempt at wiping off the same.
10. If the dead body is found inside a room, care is not always taken to describe whether the room thaws bolted from inside, kept ajar or chained or locked from outside, condition of the furniture, presence of any marks of disturbance must be included in the report.
11. Sometimes the IO marks a note of imaginary injuries on the dead body due to misinterpretation of various marks on the dead body when there is actually no such injury on the site.

Legal Aspects-Inquest.

1. Statements recorded during inquest by the IO will have the same evidentiary value as if recorded u/s 161 CrPC.
2. The witnesses examined at the inquest are bound to answer truly all questions other than those the answer to which have a tendency to expose them to a criminal charge or to a penalty or forfeiture.
3. The statements recorded by a Magistrate during inquest will have the value of statements recorded u/s 164 CrPC.
4. A confessional or admission statement of the accused made to a Magistrate holding an inquest u/s 176 is admissible u/s 26 or 21 of Evidence Act.
5. The facts observed, the materials seized, the identification of the deceased etc., are relevant facts falling u/s 7 and 9 IEA and hence they are admissible.
6. The statement of the IO with regard to the inquest proceedings he had conducted is admissible u/s 59 of the IEA Act. But inquest report is not substantive piece of evidence.

Some case laws.

1. The sub Section of 174 CrPC gives discretion to the Police Officer not to send the body for Postmortem examination by Medical Officer only in cases normally where there can be no doubt as to the cause of death. Thus discretion has to be exercised prudently and honestly.
2. Inquest report and PM report are not public documents. Accused is not entitled to inspect or receive their copies during the investigation proceeding.
3. The object of inquest report is only to notice as to whether death committed was homicidal in nature or and not for making a note about identification marks of accused.
4. Absence of names of accused in inquest report will not affect prosecution case as there is no specific column therein to mention names of accused. IO and officer conducting inquest are not questioned on that aspect.